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Tentative Ruling

Re: **Mohammed v. Maple Apartment Group, LLC, et al.**
Superior Court Case No. 23CECG04543

Hearing Date: September 22, 2026 (Dept. 502)

Motion: by Defendant Regency Property Management to Enforce Settlement

Tentative Ruling:

To deny as moot. (Code Civ. Proc., § 664.6.)

Explanation:

Defendant Regency Property Management ("Defendant") seeks to enforce a settlement entered with plaintiff Raj Mohammed ("Plaintiff"). The court initially notes that the names of the parties are handwritten and difficult to ascertain. The agreement appears to provide: "This Mutual Release and Settlement Agreement (the Agreement) is entered into as of this 15 day of October 2023 by and between Raj Mohammed and Fresno 62 Investments, LLC, Fresno Property Management Corp., Maple Apartment Group, LLC "Defendants" (hereinafter collectively referred to as "the Parties")." (Peel Decl., ¶ 3, Ex. B, ¶ 1.) It is further noted that the signature line for defendants is left blank and there is no reference to the moving parties' attorney in the agreement. Thus, it is unclear if the moving defendant, Fresno Regency Property Management, is actually a party to the settlement agreement presented. Nonetheless, on April 14, 2026, the matter as to Defendant was dismissed.

The terms of the settlement provide that the matter stay active until the settlement is completed. (Peel Decl., ¶ 3, Ex. B, ¶ 10.) From the terms of the settlement, the entry of a dismissal of Defendant suggests that Plaintiff believes the matter is concluded. Accordingly, the motion is denied as moot. The request for attorney fees is denied as Plaintiff voluntarily dismissed the action as to Defendant and Defendant does not appear to be a party to the settlement agreement presented.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 9-21-26.
(Judge's initials) (Date)

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Tentative Ruling

Re: **Ban v. Ming**
Superior Court Case No. 24CECG04019

Hearing Date: September 22, 2026 (Dept. 502)

Motion: By Defendant/Cross-Complainant for an Order Deeming Admissions Admitted and for Monetary Sanctions

Tentative Ruling:

To grant defendant/cross-complainant Roem Ming's request to deem Requests for Admissions admitted. The truth of the matters specified in the Requests for Admissions, Set One, are to be deemed admitted unless plaintiff/cross-defendant Jian Ban serves, before the hearing, a proposed response to the Requests for Admission that is in substantial compliance with Code of Civil Procedure section 2033.220.

To impose monetary sanctions in favor of defendant/cross-complainant Ming and against plaintiff/cross-defendant Ban. (Code Civ. Proc. §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Ban is ordered to pay \$400 in sanctions to the Law Offices of Cathy Cowin, within 30 days of the clerk's service of the minute order.

Explanation:

Requests for Admissions

Defendant served Requests for Admissions on Plaintiff on July 15, 2026. As of August 20, 2026 no responses had been received. The court has no information that any responses have been received as of the date of this ruling.

Failure to timely respond to requests for admissions results in a waiver of all objections to the requests, and upon proper motion the court *shall* deem them admitted. (Code Civ. Proc., § 2033.280.) The statutory language leaves no room for discretion. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 828.) However, the court may relieve the party who fails to file a timely response if, before entry of the order deeming the requested matters admitted, the party in default 1) moves for relief from waiver and shows that the failure to serve a timely response was due to "mistake, inadvertence or excusable neglect; and 2) the party has served a response in "substantial compliance with Code of Civil Procedure Section 2033.220. (Code Civ. Proc., § 2033.280(a)-(c); see *Brigante v. Huang* (1993) 20 Cal.App.4th 1569, 1584.) Here, no responses have been received to date.

Sanctions

Sanctions are mandatory against a party whose failure to respond timely necessitates a motion to deem admitted. (Code Civ. Proc., § 2033.280, subd. (c).)

Pursuant to California Rules of Court, Rule 3.1030(a), this also applies where no opposition to the motion was filed. The sanction amount awarded allows \$60 in filing fees. The court finds it reasonable to allow for a total of one hour for preparation of the motion at the hourly rate of \$340 provided by counsel. Therefore, the amount in sanctions is \$400. In the event a hearing is necessary, the court will consider the costs incurred as a result.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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